

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

**COMPLAINANT’S MOTION TO FILE UNDER SEAL COMPLAINANT’S
AMENDED OPENING BRIEF**

Pursuant to Rule 5 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (the “Rules”), 46 C.F.R. Section 502.5, and the Protective Order entered by the Presiding Officer on July 28, 2023 (Dkt. 20) (the “Protective Order”), Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant”), by and through its undersigned attorneys, respectfully moves for an order permitting Complainant to file under seal an unredacted copy of its Amended Opening Brief filed contemporaneously herewith, with a redacted version to be filed on the public docket of this case.

The Amended Opening Brief is being filed pursuant to the Presiding Officer’s December 23, 2024 Order Extending Time For Complainant to Respond to Motion to Strike Brief (Dkt. 103) in this action. Under Commission Rule 5(b), a motion for confidential treatment should specify the information in a filing for which protection is sought and show good cause by demonstrating “the information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii).” 46 C.F.R. Section 502.5(b).

Complainant’s Amended Opening Brief filed herewith contains and references material designated as Confidential or Attorneys’ Eyes Only (“AEO”) pursuant to the Protective Order by

Complainant (the “BBBY Materials”) or Respondents (the “OOCL Materials”). The BBBY Materials and OOCL Materials are the same as those subject of Complainant’s prior motion to file under seal, dated December 13, 2024 (Dkt. 92) (the “December Motion to Seal”). Complainant hereby incorporates by reference its December Motion to Seal, which likewise details the bases, if any, for permitting the BBBY Materials and OOCL Materials to be filed under seal.

As detailed in Complainant’s December Motion to Seal, and following efforts to narrow the scope of redactions, Complainant provided Respondents via email with a chart listing the OOCL Materials referenced in Complainant’s Amended Opening Brief (the “OOCL Confidentiality Chart”). *See* Declaration of J. Lee Hill, dated January 17, 2024, ¶ 3. On December 19, 2024, Respondents returned a completed OOCL Confidentiality Chart to Complainant. *See* Hill Decl. ¶¶ 4-5. On January 16, 2025, and prior to filing its Amended Opening Brief, Complainant sought confirmation from Respondents regarding their position on the confidentiality designations. *See* Hill Decl. ¶ 6. In response, Respondents confirmed that their confidentiality designations remained unchanged as reflected in the completed OOCL Confidentiality Chart. *See* Hill Decl. ¶ 7.

Despite the Presiding Officer’s December 11, 2024 Order denying Respondents’ Motion to Seal the Motion to Strike, which emphasized that requests to seal confidential material must be narrowly tailored, *see* Order at 3 (Dkt. 91, Dec. 11, 2024), and her repeated instructions to significantly narrow confidentiality designations and align with the Commission’s standards for confidential treatment, Respondents’ completed OOCL Confidentiality Chart maintained broad confidentiality designations, including marking entire depositions as confidential.

Good cause exists for the confidential treatment of the BBY Materials. Complainant believes that the nature and content of each of the materials constituting the BBY Materials is consistent with its respective confidentiality designation under the Protective Order.

Consistent with the requirements of the Protective Order in this case and for good cause shown, Complainant seeks by the instant motion leave to file its Amended Opening Brief under seal.

Dated: January 17, 2025

Respectfully submitted,

HUTH REYNOLDS LLP

/s/ J. Lee Hill

Matthew J. Reynolds
reynolds@huthreynolds.com
Karl C. Huth
huth@huthreynolds.com
Gregory A. Crapanzano II
gcrapanzano@huthreynolds.com
J. Lee Hill
lhill@huthreynolds.com
Jie Shi
jshi@huthreynolds.com
Jack Mitchell
jmitchell@huthreynolds.com
J. Luke Rushing
jlrushing@huthreynolds.com
Mohini P.B. Rarrick
Mpriya@huthreynolds.com>
Heewan Noh
hnoh@huthreynolds.com
Caden Otunu
cotunu@huthreynolds.com
(631) 263-3648
41 Cannon Court
Huntington, NY 11743

*Counsel for Complainant 20230930-DK-
Butterfly-1, Inc., formerly known as Bed Bath &
Beyond Inc.*

Certificate of Service

I hereby certify that I have this day caused to be served the foregoing document upon Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited by emailing a copy to their counsel of record listed below:

Lauren B. Wilgus
Matthew Thomas
Keith B. Letourneau
BLANK ROME LLP
1271 Avenue of the Americas
New York, NY 10020
(212) 885-5348
Lauren.Wilgus@BlankRome.com
Matthew.Thomas@BlankRome.com
Keith.Letourneau@BlankRome.com

Rebecca A. Fenneman
Eric C. Jeffrey
JEFFREY/FENNEMAN LAW + STRATEGY, PLLC
700 12th St., NW, Suite 700
Washington, DC 20005
RFenneman@JeffreyFenneman.com
EJeffrey@JeffreyFenneman.com

Counsel for Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited

Dated: January 17, 2025

/s/ J. Lee Hill

J. Lee Hill

*For Complainant 20230930-DK-Butterfly-1,
Inc., f/k/a Bed Bath & Beyond Inc.*